



Consumer Protection Policy

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1. Introduction

Trent Education Centre (TEC) is committed to ensuring that all applicants and students are treated fairly throughout the student lifecycle. TEC recognises that prospective and enrolled students are consumers of higher education services and are entitled to clear, accurate and timely information to enable informed decisions before entering a contractual relationship with TEC. This policy ensures that all information provided to prospective and current students must be transparent, accessible, accurate, complete and not misleading. Consumer protection considerations underpin TEC's approach to recruitment, admissions, enrolment, programme delivery, student assessments, support, continuation and completion.

This policy establishes how TEC complies with UK consumer protection legislation, Competition and Markets Authority (CMA) and the requirements of the Office for Students (OfS) Condition C1. It complements, and should be read alongside, the TEC Admissions Policy, Terms and Conditions, Student Protection Plan, Tuition Fees, Refunds and Compensation Policy, Complaints and Appeals Policy and other relevant policies and academic regulations.

TEC offers its own further and higher education courses and may also deliver courses in partnership with other organisations. Where TEC delivers courses in partnership with another organisation, the partner organisation's Consumer Protection Policy or equivalent, and other related policies, may apply rather than this policy. All applicants will be informed which policies apply before they enrol.

2. Purpose and Scope

2.1. Purpose

The purpose of this policy is to ensure that Trent Education Centre is equipped to address all the issues related to the protection of students as consumers of educational services provided by TEC. In particular, the purpose is to ensure that TEC:

- Complies with applicable consumer protection legislation
- Meets the regulatory requirements of the Competition and Markets Authority and Office for Students relating to consumer protection
- Provides applicants with sufficient material information to make informed decisions
- Ensures contractual arrangements with students are fair and transparent
- Manages changes to material information about programmes and services appropriately informs students about any changes
- Provides appropriate mitigations or remedies where students may be adversely affected by material changes

2.2. Scope

This policy provides consumer protection safeguards that apply to any individual who inquires about educational services at TEC, applies for or enrolls into a course. Specifically, this includes

- All prospective students
- Applicants
- Enrolled students
- All provision delivered by Trent Education Centre, whether delivered independently or through collaborative partnerships.

The policy applies throughout the student lifecycle from initial enquiry until completion or withdrawal from a programme of study. It applies to all provision including Further Education, English Language, Vocational and Higher Education courses.

3. Principles of Consumer Protection

TEC ensures that its policies, procedures and practices in relation to consumer protection and the information that is provided to students are underpinned by the following seven principles.

3.1. Transparency

Applicants and students receive information that is clear, accurate, complete, accessible, timely and presented in plain English (B1 level for English Language students where possible¹) to enable informed decision-making throughout the applicant and student lifecycle. Information will be provided at appropriate stages of the admissions, enrolment, study, assessment, continuation, completion and award processes.

3.2. Fairness

TEC will act fairly, reasonably and in good faith in all its communications, interactions and agreements with applicants and students. Contractual terms, policies and procedures will be transparent, proportionate and compliant with consumer protection legislation. TEC will ensure that its contractual arrangements do not create an unfair imbalance between the rights and obligations of TEC and its applicants or students.

3.3. Accuracy

TEC will take reasonable steps to ensure that all published information is accurate, current and reflects the educational services, facilities and support that TEC intends to provide. Information will be reviewed regularly and corrected or updated promptly where inaccuracies are identified.

¹ For some legal documents or policies, it may not be possible to grade the English to B1 level

3.4. Completeness

TEC will provide applicants and students with all material information reasonably required for them to make informed decisions regarding their application, acceptance of an offer and continuation of their studies. Material information shall not be omitted where its absence could influence an applicant's or student's decision. This includes alongside other information, fees and any other mandatory costs as well as course content, timetable and calendar.

3.5. Timeliness

TEC will provide information at appropriate stages of the applicant and student lifecycle. Where material information changes, affected applicants and students will be informed as soon as reasonably practicable and, wherever possible, before the change takes effect.

3.6. Accessibility

Consumer information will be presented in plain English so that it can be easily understood. For English Language students all information will be provided in B1 level English where possible¹. Information for students will be made available through appropriate and accessible channels, including TEC's website, prospectuses, applicant communications, induction and enrolment documentation. Reasonable adjustments and special considerations will be made where required to ensure equitable access to information.

3.7. Accountability

TEC will maintain effective governance, monitoring and quality assurance arrangements to ensure ongoing compliance with consumer protection legislation and Office for Students' regulatory requirements. The following reports are submitted to the Senior Management Team and Academic Board on a Termly basis if required i.e. when there is new course being promoted or a new cohort being recruited:

- Website Accuracy Review (Head of Quality and Head of Higher Education)
- Material Information Accuracy Report (Head of Admissions)
- Admissions Fairness Report (Head of Admissions)
- CMA Compliance Review Report (Head of Partnerships and Compliance and Head of Quality).

For more information see Quality Domain: Operational Effectiveness and Quality Cycle Stage 08: External Compliance and Regulatory Assurance in the TEC Quality Assurance Framework (QAF).

TEC recognises that prospective students rely upon published information when deciding whether to apply for and enrol on a programme of study. Accordingly, TEC will ensure that all material information made available to applicants is accurate at the point of publication and remains subject to regular review. Prior to accepting an offer of admission, applicants will have access to required information including, where applicable:

- Programme title
- Awarding body or awarding organisation
- Programme aims and learning outcomes
- Entry requirements
- Mode and location of study
- Duration of study
- Programme structure
- Assessment methods
- Tuition fees
- Any additional mandatory costs
- Available financial support
- Academic regulations
- Admissions requirements
- Student support services
- Complaints and appeals procedures
- Student protection plan
- Applicable Terms and Conditions
- Applicable Tuition Fees, Refunds and Compensation Policy

TEC will ensure that information published through its website, prospectuses, promotional materials and admissions documentation is subject to appropriate approval prior to publication. Where information becomes inaccurate or materially changes, it will be amended as soon as reasonably practicable and affected applicants or students will be informed where the change may influence their decision to enrol or continue their studies. TEC will take reasonable steps to ensure that marketing and promotional materials accurately represent the educational experience offered and do not omit information which would reasonably influence an applicant's decision to apply or accept an offer.

4. Admissions, Offers and Contract Formation

4.1. General Principles

TEC will ensure that its admissions processes are fair, transparent and consistent with published entry requirements. Admissions decisions shall be based upon the applicant's ability to satisfy the published academic and, where applicable, professional entry requirements for the programme concerned. TEC will not knowingly provide inaccurate, misleading or incomplete information during the recruitment or admissions process. See the TEC Admissions Policy for more information.

If delivering a course on behalf of a partner organisation, TEC may be subject to the admissions processes and procedures of the partner organisation rather than those set down here. Applicants will be informed which processes and procedures apply to their application when they apply and before they enrol.

4.2. Pre-contract Information

Prior to accepting an offer of admission, applicants shall be provided with sufficient material information to enable them to make an informed decision about entering into a contract with TEC.

Material information will normally include:

- Programme title and award
- Awarding body or awarding organisation
- Programme duration and mode of study
- Course content and learning outcomes
- Location of delivery
- Attendance requirements
- Tuition fees and any additional mandatory costs
- Assessment methods
- Programme regulations where applicable
- Expected learning resources
- Information regarding student support
- Terms and conditions of study
- Information relating to refunds, compensation and student protection.

TEC will ensure that this information is made available through appropriate published documentation including the TEC website, offer documentation, induction and enrolment materials.

4.3. Offers of Admission

Offers may be unconditional or conditional upon applicants satisfying specified academic, professional or administrative requirements. All conditions attached to an offer shall be communicated clearly and in writing. Where an applicant fails to satisfy the stated conditions, TEC reserves the right to withdraw the offer in accordance with the Admissions Policy and published Terms and Conditions.

4.4. Formation of the Contract

The contractual relationship between TEC and the student is formed when:

- The applicant accepts TEC's offer
- The applicant completes the enrolment process
- The applicant accepts TEC's Terms and Conditions
- All relevant enrolment requirements have been satisfied

The Terms and Conditions, together with the documents specifically referred to within them especially the Tuition Fees, Refunds and Compensation Policy, constitute the contractual agreement between TEC and the student.

5. Student Contracts and Cooling-off Rights

5.1. Transparency of Contractual Terms

TEC shall ensure that contractual terms are:

- Fair
- Transparent
- Written in clear and intelligible language
- Readily accessible before enrolment

TEC will avoid unfair contract terms that may create a significant imbalance between the rights and obligations of the student and those of TEC.

5.2. Cooling-off Period

Applicants accepting an offer of admission shall be entitled to a statutory fourteen-day cooling-off period in accordance with the Consumer Contracts (Information, Cancellation and Additional Charges). Where an applicant exercises this right within the statutory period, TEC shall process the cancellation in accordance with its Terms and Conditions and Tuition Fees, Refunds and Compensation Policy.

5.3. Variation of Contract

TEC recognises that applicants make decisions based upon the information available at the point at which the contract is entered into.

Accordingly, TEC will not make material changes to the contract unless:

- The change is necessary
- There is a valid educational, regulatory or operational reason
- A regulator, partner organisation or awarding body/organisation makes a change
- Students are informed in advance wherever reasonably practicable
- The impact upon students has been appropriately considered
- Appropriate mitigation measures are implemented where necessary

6. Material Changes to Programmes and Services

6.1. General Principle

TEC is committed to delivering programmes substantially as described at the point of admission. Whilst TEC reserves the right to make reasonable changes where necessary, any such changes will be managed in a manner that is fair, proportionate and consistent with consumer protection legislation.

6.2. Minor Changes

Minor changes may be made where they improve the student experience or are necessary to support effective programme delivery. Examples may include:

- timetable amendments
- changes to teaching rooms
- updates to reading lists
- replacement of individual teaching staff
- improvements to learning resources

Such changes would not normally require student agreement but will be communicated where appropriate.

6.3. Material Changes

Material changes are those that may reasonably influence an applicant's decision to accept an offer or a student's decision to continue their studies.

Examples include:

- Closure of a programme
- Withdrawal of a pathway or specialism
- Significant changes to programme content or learning outcomes
- Permanent relocation of delivery to another study centre
- Significant changes to the mode of study
- Change of awarding body/organisation or partner
- Substantial increases in mandatory costs

6.4. Managing Material Changes

Where a material change becomes necessary, TEC will:

- Notify affected applicants and students at the earliest reasonable opportunity
- Explain the reasons for the proposed change
- Consider the likely impact upon students
- Consult affected students where appropriate
- Implement reasonable mitigation measures
- Consider whether compensation or refunds may be appropriate in accordance with TEC policies

6.5. Programme Closure

Where TEC determines that a programme can no longer be delivered, it will seek to minimise disruption to students. Subject to individual circumstances and discussion with students, TEC may:

- Continue delivery until existing students complete
- Transfer students to another course of equivalent programme
- Facilitate transfer to another suitable provider
- Implement the measures contained within the student protection plan

Further information regarding programme closure arrangements is contained within the Student Protection Plan and Tuition Fees, Refunds and Compensation Policy.

7. Tuition Fees, Refunds and Compensation

7.1. General Principles

TEC is committed to ensuring that applicants and students receive clear and transparent information regarding tuition fees and any mandatory costs associated with their programme of study before entering into a contractual agreement.

TEC will publish tuition fees and any additional compulsory charges in advance of enrolment and will ensure that such information is readily accessible to prospective students.

7.2. Tuition Fees

TEC shall ensure that information relating to tuition fees includes, where applicable:

- All fees for all services combined and no hidden fees
- Mandatory registration or awarding body fees if applicable
- Compulsory field trips or professional registration costs if applicable
- Payment arrangements
- Available funding and financial support if applicable

Where tuition fees are subject to change, applicants and students will be informed in accordance with TEC's published Terms and Conditions.

7.3. Refunds and Compensation

TEC maintains a separate Tuition Fees, Refunds and Compensation Policy, which sets out the circumstances in which refunds or compensation may be considered. TEC's own Tuition Fees, Refunds and Compensation Policy only applies where TEC is delivering its own courses to students rather than delivering courses on behalf of a partner organisation through a collaborative arrangement such as a franchise or service level agreement. This includes circumstances arising from:

- Cancellation during the statutory cooling-off period
- Programme closure
- Material changes to programme delivery
- Withdrawal by TEC
- Other circumstances identified within the student protection plan

Nothing within this policy limits any statutory rights available to students under consumer protection legislation.

8. Student Protection

TEC recognises that, whilst every reasonable effort will be made to deliver programmes as publicised, unforeseen circumstances may affect the continuation of programmes or services. Accordingly, TEC maintains a Student Protection Plan on our website that identifies potential risks to the continuation of study and the measures available to minimise disruption to students. Where a significant risk materialises, TEC will seek to protect students by implementing appropriate mitigation measures, which may include:

- Continuation of teaching through alternative delivery methods
- Transfer to another programme within TEC
- Transfer to an alternative provider where appropriate
- Reasonable financial compensation or refunds where applicable

The Student Protection Plan shall be reviewed annually through TEC's auditing and quality assurance arrangements to ensure that it remains effective and proportionate to the risks identified.

9. Complaints and Redress

TEC is committed to resolving concerns and complaints promptly, fairly and transparently. Applicants and students who believe that TEC has failed to meet its obligations under this policy are encouraged to raise their concerns at the earliest opportunity through TEC's Complaints and Appeals Policy on the TEC website.

Complaints will normally be considered through TEC's published complaints procedures, which provide opportunities for:

- Early resolution
- Formal investigation
- Review of decisions

Where a student remains dissatisfied following completion of TEC's internal procedures, they may request a Completion of Procedures Letter and, where eligible, refer the matter to the Office of the Independent Adjudicator for Higher Education (OIA). **This option may only be available once TEC has become a registered member of the OIA. At the time of writing this policy, TEC is not a member but intends to become a member when it attains registration with the Office for Students.**

10. Responsibilities

10.1. Board of Governors

The Board of Governors has ultimate responsibility for approving this policy and ensuring that TEC maintains appropriate arrangements to comply with consumer protection legislation of the CMA and the regulatory requirements of the Office for Students. The Board receives assurance through TEC's governance and quality assurance framework and the Audit and Risk Committee (ARC) regarding the effectiveness of these arrangements.

10.2. Academic Board (AB)

The Academic Board ensure that all the information provided to applicants and students on courses is accurate, up-to-date and complete. The AB is responsible for:

- Monitoring academic matters that may affect consumer protection
- Considering significant programme changes affecting students
- Receiving assurance regarding the effectiveness of student protection arrangements
- Overseeing the quality assurance activities in relation to consumer protection including information provided to students.

10.3. Senior Management Team (SMT)

The Senior Management Team is responsible for ensuring that operational practices remain consistent with this policy and that appropriate resources are available to support compliance.

Both the SMT and the AB receive termly reports on the following where relevant:

- Website Accuracy Review (Head of Quality and Head of Higher Education)
- Material Information Accuracy Report (Head of Admissions)
- Admissions Fairness Report (Head of Admissions)
- CMA Compliance Review Report (Head of Partnerships and Compliance and Head of Quality).

For more information see Quality Domain: Operational Effectiveness and Quality Cycle Stage 08: External Compliance and Regulatory Assurance in the TEC Quality Assurance Framework (QAF).

10.4. Head of Quality and Head of Partnerships & Compliance

The Head of Quality and Head of Partnerships & Compliance are responsible for:

- Monitoring compliance with this policy
- Advising the Senior Management Team and the Board of Governors on developments in consumer protection legislation and OfS regulatory requirements
- Submitting termly CMA Compliance Reviews as required to the SMT and AB
- Coordinating the annual review of consumer protection arrangements for the Annual Operational Review
- Reporting significant compliance risks through TEC's committees and governance structure

10.5. Head of Higher Education and Programme Leaders

The Head of Higher Education and Programme Leaders are responsible for ensuring that programme information remains accurate and for notifying the Head of Partnerships & Compliance of any proposed material changes that may affect applicants or students. The Head of Higher Education and the Head of Quality submit termly Website Accuracy Reviews to the SMT and AB if required.

10.6. Admissions Team

The Admissions Team ensures that applicants receive accurate and timely information throughout the admissions process and that offers of admission are issued in accordance with published policies and procedures. The Admissions Committee submits a termly Admissions Fairness Report to the SMT and AB if required.

10.7. Marketing and Communications

TEC ensures that promotional material, website content and other published information relating to its provision is subject to appropriate approval by a minimum of two senior management members before publication and reviewed periodically to maintain accuracy.

10.8. Staff Training and Awareness

TEC ensures that staff involved in recruitment, admissions, marketing, programme management, student services and the development of student-facing information are appropriately informed of their responsibilities under consumer protection law and Office for Students requirements. Relevant staff will receive training or guidance appropriate to their role, including in relation to:

- Provision of accurate and complete material information
- Fair and transparent admissions practices
- Contractual information and student terms and conditions
- Management and communication of material changes
- Tuition fees, refunds and compensation
- Complaints, appeals and student redress

The Head of Partnerships & Compliance will oversee consumer protection awareness and identify where refresher training or further guidance is required.

11. Monitoring and Review:

TEC will monitor the implementation and effectiveness of this policy through its quality assurance framework, auditing and governance arrangements to ensure continued compliance with consumer protection legislation and the Office for Students' regulatory requirements. Compliance with this policy will be monitored through, but not limited to:

- Periodic reviews of published student-facing information
- Internal audits of admissions, recruitment and enrolment practices
- Review of student contracts, terms and conditions and associated policies
- Analysis of student complaints, appeals and feedback relating to consumer protection matters
- Monitoring of material programme changes and implementation of the student protection plan
- Review of regulatory developments, including updates issued by the Office for Students, the Competition and Markets Authority and other relevant bodies
- Monitoring of staff training and awareness relating to consumer protection responsibilities

The Head of Partnerships & Compliance is responsible for coordinating the annual review of this policy and reporting any significant consumer protection risks or recommended amendments to the Academic Board for consideration and approval. This policy shall be reviewed annually or earlier where required due to any of the following:

- Changes in legislation or regulatory requirements
- Revisions to Office for Students or Competition and Markets Authority guidance
- Recommendations arising from internal or external quality assurance activities
- Significant changes to TEC's provision
- Lessons learned from complaints, appeals or other consumer protection matters

Any amendments to this policy shall be approved through TEC's governance arrangements and ultimately by the Board of Governors prior to implementation. Where amendments materially affect applicants or students, TEC will ensure that associated documentation and published information are updated accordingly.